Galveston County District Court

Cause No. 2025-CV-0050

Sarah Oconnor, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	11-4-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, except those specifically admitted herein, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations of Plaintiff's Petition and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

Subject to and without waiving the foregoing denial, Defendant asserts the following affirmative defenses. First, the collision was a low-speed event, and Plaintiff's claimed injuries were not proximately caused by the occurrence, or were pre-existing, unrelated, or subsequently aggravated by independent intervening causes. Second, Plaintiff failed to exercise ordinary care to mtiigate damages, including by failing to follow reasonable medical advice and by incurring treatment that was not reasonable or necessary. Third, Plaintiff's recovery, if any, must be reduced by the percentage of responsibility attributable to Plaintiff under Chapter 33 of the Texas Civil Practice and Remedies Code, and Defendant invokes the proportionate responsibility provisions of that chapter.